

		Moreover, Plaintiff has shown a triable issue of material fact as to the length of time to repair the oil leak/low oil issue. (ADF 8, 14, 16, 17, 25, 26.) Thus, the Motion is denied as to the second cause of action/ Issue 2. Plaintiff's third cause of action is brought under Section § 1793.2(a)(3). This statute requires Defendant to "[m]ake available to authorized service and repair facilities sufficient service literature and replacement parts to effect repairs during the express warranty period." (Civ. Code § 1793.2(a)(3).) Defendant argues that Plaintiff cannot establish his third cause of action for the alleged violation of Civil Code § 1793.2(a)(3) because Plaintiff has no evidence that Ford failed to make available to authorized service and repair facilities sufficient service literature and replacement parts. The Court finds that Defendant has not met its moving burden. It is not enough for defendant to show merely that plaintiff "has no evidence" on a key element of plaintiff's claim. Defendant must also produce evidence showing plaintiff <i>cannot reasonably obtain</i> evidence to support that claim. (<i>Gaggero v. Yura</i> (2003) 108 Cal.App.4th 884, 891; <i>Zoran Corp. v. Chen</i> (2010) 185 Cal.App.4th 799, 808.) Defendant does not satisfy its burden of proof by producing discovery responses that do not exclude the possibility that plaintiffs may possess or <i>may reasonably obtain</i> evidence sufficient to establish their claim. (<i>Weber v. John Crane, Inc.</i> (2006) 143 Cal.App.4th 1433, 1441-1442.) A plaintiff's unawareness of facts to support a claim does not necessarily show the claim "cannot be established" where those facts are not likely to have been known to plaintiff. (<i>Villa v. McFerren</i> (1995) 35 CA4th 733, 749.) Thus, the Motion is denied as to the third cause of action/ Issue 3. Defendant is ordered to serve notice.
104	2021-01204953 Yang vs. Evan Paul Motorcars	Motion to Be Relieved as Counsel of Record Before the Court is Troy Schell, Esq., John Nuelle, Esq., and Schell Nuelle LLP's Motion to be relieved as counsel for Defendant Evan Paul EA Auto Leasing LLC. There is no proposed order. The relevant rule of court says that the proposed order relieving counsel must be prepared on the <i>Order Granting Attorney's Motion to Be Relieved as Counsel--Civil</i> (form MC-053) and must be lodged with the court with the moving papers. The order must specify all hearing dates scheduled in the action or proceeding, including the date of trial, if known. If no hearing date is presently scheduled, the court may set one and specify the date in the order. After the order is signed, a copy of the signed order must be served on the client and on all parties that have appeared in the case. The court may delay the effective date of the order relieving counsel until proof of service of a copy of the signed order on the client has been filed with the court. (Cal. Rules of Ct., Rule 3.1362(e).) Counsel is ordered to file a proposed order, filled out completely, including all future hearing dates, and serve it on Plaintiff's Counsel and Defendant at least 16 Court days prior to the continued hearing date.

		The Court continues the hearing on this Motion to August 31, 2026 at 2:00 p.m. in C27 to be heard concurrently with Defense Counsel's other pending Motion to be relieved. The Court also notes that it appears the second Motion has no proposed order either. The Order to Show Cause re: Monetary Sanctions and Trial Setting Conference set for July 27, 2026 are advanced and continued to August 31, 2026 at 2:00 p.m. in C27. Defense Counsel is ordered to serve notice of the aforementioned ruling and continued hearing dates.
105	2023-01351595 Lenin vs. STC Gardenwalk, LLC	Motion for Continuance of Trial The motion of Defendant, Cross-Complainant, and Cross-Defendant Integrated Asset Management Group, LLC, for an order continuing trial, or in the alternative staying this action, is denied in part and granted in part. The request to continue this matter is denied. The request to stay this action while the related criminal matter is pending is granted. The Court vacates the current trial and MSC dates of October 26, 2026 and September 25, 2026, respectively. The Court sets a status conference for February 22, 2027 at 10:00 a.m. in Department C27. Given the aforementioned stay, the motions to strike set for July 27, 2026 (ROA 247) and September 14, 2026 (ROA 267), respectively, are taken off calendar. Moving party is ordered to give notice.
106	2026-01544923 Comia vs. Eagle Law Corp	Motion to Compel Arbitration Defendants Eagle Law Corp.'s and Donald M. Baker's motion to compel arbitration of Plaintiff's claims is granted. On 9/8/23, Plaintiff and Defendants executed a retainer agreement which included the following clause: EAGLE does not carry errors and omissions insurance. In the event of any dispute between the parties arising out of or relating to this retainer agreement, or to the professional services rendered by this firm, any attorneys or personnel, including but not limited to claims for legal malpractice, any such claims shall be resolved by binding arbitration conducted under the Rules of the American Arbitration Association before one arbitrator. Each side shall bear his or her or its attorney's fees and costs, and one half of the charges of the arbitrator. It is agreed that the arbitration will be conducted in Orange County, California. (Defendants' Ex. A.) Plaintiff does not dispute that she signed the retainer agreement. Contrary to Plaintiff's argument, this agreement encompasses Plaintiff's malpractice claims that are pled in her Complaint. (See <i>Powers v. Dickson, Carlson & Campillo</i> (1997) 54 Cal.App.4th 1102, 1113-1114.)